

IS YOUR RECORD ALREADY CONFIDENTIAL? THE CLASSIFICATION WORKSHEET

Prepared for: Marie-Therese O'Callaghan-Beauchemin

MAINE DOES NOT SEAL OR EXPUNGE NON-CONVICTIONS ON MOTION. There is no petition, no motion and no court filing on this route. Instead, 16 M.R.S. Sec. 703(2) makes the listed non-conviction dispositions confidential criminal history record information BY OPERATION OF LAW: automatically, with no filing and no court involvement. Confidential information may be disseminated only to the recipients 16 M.R.S. Sec. 705 lists, and a criminal justice agency may not confirm its existence or nonexistence to anyone not entitled to receive it.

STEP ONE - CLASSIFY YOUR DISPOSITION AGAINST THE Sec. 703(2) LIST. The listed categories include:

- a summons or arrest without disposition, where more than one year has elapsed, no active prosecution is pending and you are not a fugitive;
- a decision by law enforcement not to refer the matter to a prosecutor;
- a decision by a prosecutor not to initiate or approve criminal proceedings;
- a grand jury finding of insufficient evidence;
- a charge dismissed with prejudice by the court, or dismissed with finality by a prosecutor outside a plea agreement;
- an acquittal - which does NOT include a verdict or accepted plea of not criminally responsible by reason of insanity;
- a mistrial with prejudice;
- termination for lack of subject matter jurisdiction, or for want of jurisdiction over the defendant;
- and the remaining paragraphs of Sec. 703(2), which include a pardoned conviction.

Two dismissal facts decide the classification and neither can be guessed: whether the dismissal was WITH PREJUDICE, and whether a prosecutor's dismissal was OUTSIDE A PLEA AGREEMENT. Your court paperwork answers them; where it does not, ask the office that keeps the records of the court that handled the case, or get advice.

A DEFERRED DISPOSITION IS NOT PROMISED ANYTHING HERE. Whether a charge dismissed after a completed deferred disposition falls inside Sec. 703(2) is not established by any statute, Bureau guidance or decision, because a deferred disposition arises from a written agreement with the State. This packet does not promise confidentiality on that branch; verify what the Bureau record actually shows, and get advice if it matters.

IF YOUR DISPOSITION IS OUTSIDE THE LIST, Maine offers no relief for it on this route, and this packet says so plainly rather than routing you to a request that will be refused.

STEP TWO - SEE WHAT THE STATE ACTUALLY HOLDS. Request your own Maine criminal history record from the Maine State Police, State Bureau of Identification: order online through the Bureau's public criminal history request service, or by mail to State House Station #42, Augusta, ME 04333-0042. The Bureau charges a fee for the standard record search and a higher fee for a notarised background check; confirm the current amounts with the Bureau, because no figure is published here.

STEP THREE - SEPARATE THE THREE PLACES A RECORD SHOWS UP. They have different remedies, and people conflate them:

- THE BUREAU RECORD. If it treats a confidential disposition as public, or is simply wrong, the Sec. 709 request in this packet is the remedy.
- THE COURT DOCKET. Court records sit outside this route entirely: Sec. 709(6) does not reach them, and public access to court records is governed by Supreme Judicial Court rule under 16 M.R.S. Sec. 708. A case may remain visible on a public docket even when the Bureau record is correct.
- A PRIVATE BACKGROUND-CHECK COMPANY'S REPORT. A private vendor's stale database is a consumer-reporting problem with the vendor, not a Bureau problem.

Where is the record actually causing you a problem? Write it here after checking your Bureau record, your court paperwork, or the vendor report - it decides which remedy, if any, this packet holds for you:

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Route: obligation:unit:ME:me-nonconv:me-nonconv-709-correction-request

INSPECTION AND CORRECTION REQUEST UNDER 16 M.R.S. SEC. 709

USE THIS PAGE ONLY IF the agency record is demonstrably inaccurate - most often, the State Bureau of Identification is carrying as public a disposition that 16 M.R.S. Sec. 703(2) makes confidential, or is carrying a disposition that is simply wrong. If the Bureau record is accurate, send nothing: Sec. 703(2) confidentiality is automatic and there is nothing to request.

To: the Maine criminal justice agency that maintains the record, principally:
Maine State Police, State Bureau of Identification
State House Station #42, Augusta, ME 04333-0042
(delivered in person or by mail)

RE: Request for amendment or correction of criminal history record information under 16 M.R.S. Sec. 709

I, Marie-Therese O'Callaghan-Beauchemin, request, under 16 M.R.S. Sec. 709(1) and (2), that the criminal history record information the agency maintains about me be amended or corrected as set out below. Sec. 709(2) provides that the agency has fifteen days to investigate and to notify me of its decision, with reasons for any refusal.

Date of birth: 1957-12-31

The record concerned, identified from my court paperwork:

Court that handled the case, and its county:
.....

Docket number, where my paperwork states one:
.....

What I was charged with:
.....

How the case ended, copied from the court order or docket entry - including, for a dismissal, whether it was with prejudice or was outside a plea agreement, exactly as the paperwork says; where the paperwork does not say, this line is left blank and I will ask the court's records office before sending this request:
.....
.....

Date the case ended that way:
.....

What the agency record currently shows about this case, copied from my own Bureau record:
.....
.....

The amendment or correction requested - what the record should show instead, and where the disposition is one 16 M.R.S. Sec. 703(2) lists, the paragraph of Sec. 703(2) it falls under, taken from the classification worksheet in this packet:

.....
.....

Attached are the court order or docket entry showing the disposition, and the page of my own record showing what is currently carried, per the attachment checklist of this packet.

This request states facts from my own court paperwork and record. It asserts nothing about the agency's conduct.

DATE SIGNATURE

(You sign and date this request personally. Nothing on this page is signed or dated for you.)

PRINTED NAME: Marie-Therese O'Callaghan-Beauchemin

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ATTACHMENT CHECKLIST FOR THE SEC. 709 REQUEST

Prepared for: Marie-Therese O'Callaghan-Beauchemin

Attach these to the Sec. 709 request. Each is named here and obtained by you; nothing is obtained, inspected or authenticated for you.

ONE. The court order or docket entry showing how each charge ended - and, for a dismissal, whether it was with prejudice or without prejudice. That single word decides the Sec. 703(2) classification. Ask the office that keeps the records of the court that handled the case.

TWO. The page of your own Maine criminal history record, from the State Bureau of Identification, showing what is currently carried for this case.

Send copies, not your only originals.

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INSTRUCTIONS, AND THE ESCALATION PATH

This packet is prepared for a Maine case that did not end in a conviction: confidentiality by operation of law under 16 M.R.S. Sec. 703(2), and the Sec. 709 inspection and correction request where the agency record is wrong.

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WHICH UNIT IS YOURS

This packet carries two alternatives and at most one applies:

- THE BASE BRANCH: your disposition is on the Sec. 703(2) list and the Bureau record already treats it correctly. NOTHING IS FILED OR SENT. The confidentiality is automatic. The classification worksheet is the whole of this branch.
- THE CORRECTION BRANCH: the agency record is demonstrably inaccurate. You send the Sec. 709 request in this packet, in writing, to the agency that holds the record - principally the State Bureau of Identification, in person or by mail. There is no official form and the statute prescribes none. No one else is served, and no fee attaches to a Sec. 709 request.

WHAT HAPPENS AFTER YOU SEND THE REQUEST, FROM THE STATUTE

- Sec. 709(2): the agency has FIFTEEN DAYS to investigate and to notify you of its decision, with reasons for any refusal.
- Sec. 709(3): on a refusal, you may take an administrative appeal to the head of the agency, who must complete it within THIRTY DAYS. This packet does not draft that appeal: an administrative appeal is a contested proceeding and is work for a lawyer.
- If the appeal is refused, you may file a STATEMENT OF DISAGREEMENT, which must accompany any future dissemination of the disputed information.
- Final agency action is reviewable in the Superior Court under 5 M.R.S. ch. 375, subch. 7. This packet does not draft any court filing.
- On correction, Sec. 709 requires the agency to notify prior recipients within thirty days.

WHAT THIS ROUTE DOES NOT REACH

- COURT RECORDS. Sec. 709(6) does not apply to court records; access to them is governed by Supreme Judicial Court rules. A case may remain visible on a public docket even when the Bureau record is correct, and this packet says so plainly rather than implying the docket is cured.
- PRIVATE VENDOR DATABASES, which are a consumer-reporting problem with the vendor.

MONEY. No fee attaches to the confidentiality itself and none to a Sec. 709 request. The Bureau charges a fee for your own record search and a higher fee for a notarised background check; no amount is published here - confirm the current amounts with the State Bureau of Identification.

WHEN TO STOP AND GET HELP INSTEAD OF SENDING ANYTHING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- your paperwork does not say whether a dismissal was with prejudice, or whether it was part of a plea agreement;
- you need a COURT record restricted rather than a Bureau record treated as confidential - that is 16 M.R.S. Sec. 708 and court-rule territory, outside this route;
- the case ended with a verdict or accepted plea of not criminally responsible by reason of insanity;
- the case was a deferred disposition - its Sec. 703(2) status is not established, and this packet promises nothing for it;
- the agency refuses the correction and you want to appeal to the agency head or seek Superior Court review;
- you are not a United States citizen - a non-conviction disposition can still carry immigration consequences.

WHAT THIS PACKET IS NOT

This is a classification worksheet, a controlled written request and instructions. It is not a court filing of any kind - Maine provides none for this - it is not legal advice, and it does not promise that any record is or will become confidential.

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